

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.
JUDICIAL DEPARTMENT
Crl. Misc. No.796-B of 2025.

Qurban Ali Vs. The State, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
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25.03.2025. Mr. Abdul Ghaffar Ansari, Advocate for the petitioner.
Mr. Adnan Latif Sheikh, Deputy Prosecutor General with Rasheed ASI.
Mr. Abdul Rehman Tariq Khand, Advocate for the complainant.
Khawaja Qaisar Butt, Advocate on behalf of Punjab Bar Council.

Through this application, the petitioner seeks post arrest bail in case FIR No.826 dated 12.10.2024 under sections 419/468/471/379 PPC police station City Chichawatni, District Sahiwal.

2. The FIR was registered against the petitioner on the allegation that he being accused of case FIR No.871/2024 under section 381 PPC police station Saddar Chichawatni got lodged by the present complainant, had applied for bail which petition was pending wherein he tendered his power of attorney as an advocate and on 24.09.2024, a date fixed in the case, the petitioner along with two unknowns also extended threats to the complainant of dire consequences. On collecting information it disclosed to the complainant that the petitioner was not an advocate; neither he had a degree of law nor his name as an advocate was reflected from the online list of advocates maintained by the Punjab Bar Council yet he used to blackmail the general public through impersonation while committing fraud and forgery.
3. Learned counsel for the petitioner contends that the claim of the complainant is not supported by any documentary evidence in the form of Court’s cause list to show fixation of any bail petition

of the accused/petitioner nor any pleadings signed or filed by the petitioner as an advocate are on the record. Further submits that copy of licence as practicing lawyer was provided by the complainant himself to the Investigating Officer which has not been recovered from the present petitioner. Adds that even otherwise, without the intervention of Punjab Bar Council this FIR could not have been registered and complainant has not filed any complaint/application before the Punjab Bar Council for an action under the law.

4. Upon such submissions this Court by virtue of order dated 12.03.2025 directed appearance of a representative of Punjab Bar Council to clarify the legal course in such like situation in the light of sections 58/59 of the Legal Practitioner & Bar Councils Act, 1973. On 25.03.2025, Khawaja Qaisar Butt Advocate, Member Punjab Bar Council appeared on behalf of Punjab Bar Council and stated that the Punjab Legal Practitioners & Bar Council Rules, 2023 authorize the Court concerned to investigate, inquire or try the offence where such offence is committed. However, conceded that Punjab Bar Council has not received any application from the complaint to initiate the legal action under such Rules.

5. To better appreciate the contentions, it is essential to take a see-through analysis of the process mentioned in the Punjab Legal Practitioners & Bar Council Rules, 2023 and the relevant sections of the Legal Practitioners & Bar Councils Act 1973. The Punjab Legal Practitioner & Bar Council Rules, 2023 (PLPBCR, 2023) were passed by Punjab Bar Council in its meeting held on 03.06.2023 vide No. 9678/2023/PbBC, in exercise of the powers conferred by Section 55 of the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973) and other enabling provisions in this behalf. The notified Rules prescribe procedure to deal with complaints against '**fake advocates**'. Rule 4.17 of PLPBCR, 2023 is as under;

“All applications, references or complaints etc., against any person posing or purporting to be an advocate or purporting to hold a law degree, or is alleged to be a ‘fake advocate’ shall be made to the Secretary, which shall be forwarded to the Executive Committee”.

Such applications etc., addressed to Secretary Punjab Bar Council shall be placed for further action before the duly notified Executive Committee of Punjab Bar Council and such committee if found that the allegations made in the complaint/application are proceedable then notice shall be issued to the respondent/advocate within in 15 days as mentioned in Rule 4.23 of PLPBCR, 2023 and then holding of an inquiry per authorization of Rule 4.19 of PLPBCR, 2023 which is as under;

“Executive Committee shall, after verification of the record of the Bar Council, issue notice to the concerned person for appearance and written reply, and thereafter hold an inquiry, regarding the allegations. Executive Committee will exercise the powers under the Act and Rules, during the inquiry proceedings. Executive Committee may call for a report or record from any government, semi government or autonomous body, authority, or educational institute during such proceedings”.

Though notice is issued to the person under allegations yet the complainant shall also be associated into the inquiry for the purpose of procuring any record judicial or private against respondent/advocate and also to ensure fair and transparent proceedings. Inquiry must be completed within four months as per Rule 4.25 of PLPBCR, 2023. After inquiry, the course to be followed by Executive Committee is reflected from Rule. 4.21 of PLPBCR, 2023 as under:-

“Any person who is not enrolled as an advocate on the roll of the Bar Council, and poses/shows himself/herself as an advocate at any forum or in public at large as well as on print media, electronic media, social media, Whats app etc., may be prosecuted, after inquiry, under section 58 of the Legal Practitioner & Bar Councils Act, including, inter alia, the registration of a criminal case under section 154 of Cr.P.C.”

Above Rule connotes two-fold course for initiation of prosecution against the person under allegation; either through filing a complaint before the concerned Court or lodging of FIR under section 154 of Cr.P.C., but by and under the authority of Executive Committee of Punjab Bar Counsel. Thus, a private person individually at his own cannot initiate criminal

proceedings until the process highlighted above is exhausted, because neither in the Legal Practitioner & Bar Councils Act 1973, nor in Rules of 1976 or in PLPBCR, 2023, there is any express provision that cognizance of offence under section 58 of the Legal Practitioners & Bar Councils Act, 1973 shall only be taken by the Court on the complaint of concerned Bar Council. Thus, under the principle that when anything is prescribed in law to be done in a manner, it must be done in that particular manner or not otherwise, private individuals must hold on to initiate the criminal proceedings until Punjab Bar Council fails to do so.

6. Punjab Bar Council marks its jurisdiction throughout Punjab, thus, question where such proceedings shall be initiated has also been met through Rule. 4.26 of PLPBCR, 2023 as under;

“Every offence under the Act, the Legal Practitioner & Bar Councils Rules, 1976, these Rules or under, *inter alia*, the provisions of Pakistan Penal Code, 1860, will ordinarily be investigated, inquired and tried by a court within the local limits of whose jurisdiction, the office of the Punjab Bar Council (Lahore) is situated or where any such offence has been committed”.

Provided that when a person is accused of the commission of any offence under the Legal Practitioner & Bar Councils Act, 1973, the Legal Practitioner & Bar Councils Rules, 1976, the Punjab Legal Practitioner & Bar Councils Rules, 2023 and Pakistan Penal Code, 1860, by reason of anything which has been committed, and of any consequences which has ensued, such offence may be investigated, inquired into or tried by a Court within the local limits whose jurisdiction any such offence has been committed, or any such consequences has ensued.

In the light of above rule, any Court can assume jurisdiction within whose limits the offence is committed or the consequences ensued, or by the Court where the office of Punjab Bar Council situates (Lahore). If there is a conflict between two Courts, then High Court under Section 185 (1) of the Cr.P.C. shall decide that which of the Courts should inquire or try the offence. For reference section 185(1) of Cr.P.C. is reproduced as under;

185. High Court to decide, in case of doubt, district where inquiry or trial shall take place. (1) Whenever a question arises as to which of two or more Courts subordinate to the same High Court ought to inquire into or try any offence, it shall be decided by that High Court.

7. Before registration of present FIR, Punjab Bar Councils has not been taken on board, nor any application or complaint was filed before it, and police has also not collected any documentary evidence in support of allegations as submitted by learned counsel for the petitioner and conceded by learned Deputy Prosecutor General, thus, petitioner has made out a case for further inquiry as enunciated through cases reported as “Syed SAKHAWAT HUSSAIN Versus The STATE and another” (2024 SCMR 1103) and “AHMAD NAWAZ and another Versus The STATE and another” (2024 SCMR 1525). Consequently, this bail application is allowed and petitioner is admitted to post arrest bail subject to furnishing bail bond in the sum of Rs.200,000/- with one surety in the like amount to the satisfaction of learned trial court.

These are the detailed reasons of my short order dated 25.03.2025.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved for reporting

Judge

Signed on 04.04.2025.

Javed*